Jails, Hospitals and Hip-Hop

By Danny Hoch

A man in his mid-twenties loiters in a hallway of the C-74 building on Riker's Island, New York City. He conversates with a new inmate.

. . . . . Really? That's messed up, man. I hear you ....Yeah . Wow. Hey yo, do me a favor? Take a walk with me for one second? I gotta get a toothbrush. Just take a walk with me to get a toothbrush for one second. *(They walk)* But for real, man, if I was you, I would talk to your lawyer and tell him that you wanna plea-bargain. 'Cause even though you was just an accomplice, if you plead not guilty, and it goes to trial, they could decide to make it a first-degree felony against *you*, and that's it. I'm sayin', whatever, even if you not an accomplice, whatever, bee, I wasn't there, I ain't sayin' you did nothin', man. I mean, I just met you yesterday. But, especially 'cause you're black ... I mean ... are you black? Oh, I wasn't sure, I thought you might be, whatever. Still, just plead guilty, guilty, guilty. I seen it happen before. Even if you didn't do it. Otherwise they start makin' deals with all your peoples, make it look like you're the one that pioneered the whole *thing*. Then they get you for conspiracy when you was just an accomplice-or you just happened to be there, like I said I wasn't there, I ain't sayin' you did nothin'. *(He calls an officer)* On the gate! On the gate! Officer on the gate! ..... Nah, to inmate services-for a toothbrush, they took his toothbrush in the dorm. Right? Right, they took your toothbrush in the dorm? They took his toothbrush in the dorm! That's my ID card right there. Show him your ID card, pal. So we'll wait right here then. Where we going? Right?

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INTRODUCTION

Illegal street vending is a serious problem affecting many cities around the world and has also proved to be a challenge for municipal authorities the world over, despite the enactment of legislation outlawing this practice. From the African American peddlers of the 1860s to the Italian and Jewish merchants of the 1920s, street vending is deeply rooted our country's culture and history. Street vending continues to offer a viable source of income, particularly for immigrants without work permits. Some have estimated that hundreds of millions of dollars worth of goods are sold on city streets annually. Prosecuting street vendors is difficult if not impossible to accomplish – However, in this selection that very event has taken place. Meet Bronx, a pale-skinned sidewalk vendor busted for selling O. J. Simpson T-shirts without a license who enrages a policeman who can't figure out what race he is. Jails, Hospitals and Hip-Hop by Danny Hoch.

(Back to the guy) I'm tellin' you, if I was you, I would just say guilty, take the bid, do your little one-to-three, whatever, politic, you know. Me, I got different problems, man. See, I try to do the right thing, they lock me up. Giuliani's like, "Oh, people on welfare are lazy." I'm tryin' not to be on that. I'm workin', right? I'm in Fordham Road. I'm sellin' Bart Simpson T-shirts, and um, what you call it-O.J. Simpson T-shirts, right? This cop come up, arrest me 'cause I don't got a license. I'm not selling drugs! I'm not selling drugs! I'm selling Bart Simpson T-shirts, O.J. Simpson T-shirts. That's work, man. You think that it is easy? It is hard, man, I don't even wanna go into it . . . Nah, but that's illegal? They said it's illegal. You know, I'm tryin' to do right in my life, man. I wanna be a entrepreneur, or whatever you call it. You know if I was that little girl that they show on TV in that commercial selling lemonade in front of her house, you think the cop gonna arrest *her?* Nah-ah! Nah-ah! But see, if you think about it, the little girl, she's a entrepreneur, just like me. She's a businesswoman. She got-what you call it?-Overhead. She gotta get her sugar, her lemons, her cups, she makes her stand, then she stand outside all day. Me? I got my shirts, my stand, I stand outside all

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day. But you know if that cop see her in front of her house with her little white picket fence or whatever, he'd be like, "Oh ... " -all jolly -"that's so cute, lemme get a lemonade, sweetheart?" Right? And then he'd drink his lemonade and then he'd say, "Mm, tasty ... whatever, whatever." Then he leave. Then he go beat up some people. Then he go home and feel like, it's not really such a bad day today. God bless America, right? But he see me in Fordham Road? Nahah, different story. He step to me, "Hey you! Where's your license?" He gonna say, "Where's your license?" to the little girl? Nah-ah! Nah-ah! See, what is it, he don't care if I got a license, or I don't got a license. He don't like the way I look. I live in 163rd Street, I got a certain look. People in Park Avenue, *they* got a certain look. But the cop gonna see somebody from Park Avenue or Tribeca, hauling three kilos of cocaine to their girlfriend's house, on their designer rollerblades or whatever, he's not gonna get disturbed by their look. He'll say, "Hey, how are you? Have a doughnut. Okey-dokey, buddy." Or whatever. But then he see somebody that appears-I don't even *know-unprofessional,* or whatever, he automatic think criminal.

So this cop, he gets out the car all with his cop *crap*. But see, he had sunglasses, so when he look at me first from the car, I look darker. When he get out, he like-"Uht, uht." He get *confused.* 'Cause if you put me next to the cop, I'm whiter than the cop. He start askin' me, "What are you? What are you?" I say, "That's not your business, you wanna buy a shirt?" Then he knock over all my *stuff* in the street, the shirts is dirty. Now I have dirty products. I have to pay for that. And peoples is laughin' at me, man.

Next thing, he throw me down in the ground, he got his nightstick in my back,

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with the spit and the gum from the sidewalk is in my face. He say, "What are you, what are you?!! Are you Puerto Rican, are you Puerto Rican?" I say, "Nah, I'm not Puerto Rican yo, I'm selling Bart Simpson, O. J. Simpson T-shirts, what's the problem officer?" But see, he wanna know, what am I? I mean, my color is white like Bill Clinton, but that's not good enough for him, you know, in the way that I'm speaking, or I don't even know. He got a complex, he needs to see a therapist 'cause he's confused. Then, he look at the T-shirts, and he get more confused. 'Cause he don't know who's Bart Simpson. He knows Bart Simpson is Bart Simpson, but he don't know Bart Simpson is Dominican, Jewish, Greek, Puerto Rican? What is he? He don't know, but he know that Bart Simpson and O. J. Simpson make more money than *him*, so he feel threatened. Then the cop look at me, and he see somebody that's a entrepreneur, that's trying to start a business from nothing. He see that I have the possibility to better my situation. That I have the opportunity to increase my status, or whatever you call it. And then he looks at himself, and he sees that he's just a servant and that's it. Even if he turn captain, lieutenant, police chief, whatever, he's just a *servant* and that's all he *gonna* be ... So he feel threatened. And 'cause he feel threaten, that day he gonna decide capitalism is illegal. And 'cause I got a prior felony on my record, they put me in here. *(To another guy)* You got a cigarette?

(Back to guy number one) See, if you analyze it with the little girl and the lemonade, that's supposed to be America, right? That you could stand outside your house and sell whatever. If that's not true that you could do that, don't advertise it then. Don't put it in the TV, you know? To be honest with you, I

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seen that commercial, I got inspired by that. I said yo, *it* ain't really that bad, I got chances. Now I'm in jail, bro. I feel like *suing* them lemonade *freaks*, man. Or suing somebody for false advertising. I know I wasn't selling lemonade, that's not the-Hey yo, shut up, bro. I didn't really ask you to respond. *(To another guy)* You got a light?

(Back to guy number one) Nah, they arrested me a month ago, I ain't even had a hearing, nothing. First they had me in C-73, I was there for two weeks, but I got in a fight, this guy tried to cut me. Tried to assassinate me right in the TV room, 'cause I wanna change the channel in the TV. So they transferred me to 74, lock me here. Nah, this kid tried to step to me 'cause I tried to get them to watch something else, man. They sitting there for two weeks watching Tonya Hardy/Nancy Kardigan. How you gonna tell me that interests you, man? You don't even know what's figure skating, I told them, man. What the *hell* is that? That concerns you? Ice-skating got nothing to do with my life. Once my mother took me ice-skating to Rockefeller Center when I was three years old, I fell and I cried, I said, "What's this? A sport?" Now I'm in jail and I sit there every day, I have to watch that *crap*. That *crap* is punishment for real, man.

I don't *care* about one girl don't want the other girl to win the World Ice Medal, then she gonna start scheming and get some kid with a golf club to hit her in the knee. That is cartoons, man. They in there debating over it, fighting. "She did it!" "No she didn't do it!" I told them, "You in jail, man, fight over your shoes or something!" But you know what is it? I figured it out. It's that people like to see these smiling cornflake-type women *messin'* each other up. 'Cause if you think

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about it, you never really see, or you rarely see, nah, you might see like in a soap opera or somethin'. Like, one lady's like, "Oh, I'm gonna take her man," or "I'm gonna stab that *witch," or, " ... poison her tea ... " or whatever. But in real life, they're all sitting around the sofa drinking ginger ale. So when it happens in real life, people eat it up. They're like, "What?! Two white ladies fighting? Where?!". They pay money to see it. In cable. In pay-per-view.

Every single day for four months, in the news with that.

Right? .... Who you trying to play? You know you was watching. But see, they make that ice-skating/golf-club *crap*the number one story. They try to make you think that that's the most important *stuff* that you should be concerned about, so that you forget, they try to distract you, to make you ignore, from that you can't feed your kid, that you can't fulfill your dreams 'cause people won't hire you 'cause you got a felony on your record. I had to change the channel man Nah, this kid wanna act hard rock with me, pull a razor. Pssh. I cut him before he cut me ..... Nah, he wanna force me to act like a criminal. I ain't in here 'cause I'm a criminal. I'm in here 'cause I'm poor, that's why I'm in here!

(To the officer) .....Huh? A toothbrush Yeah. That's what we're waiting for. *(To guy number one)* Go get your toothbrush.

Nah, he ain't gonna let me. He ain't gonna let me. Yo, see if you could get two ... Tell 'em they took two . . .

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SOURCE INFORMATION

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AWARD HISTORY

2002 National Qualifier
2010 National Qualifier
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